

School/Vendor Category-Control Violation Packet

Eleven rule handles for school-authorized ed-tech, platform-risk, student promotion, and minor demand-engineering pathways

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Architecture rule: external sources support the owner-function map; they do not replace it.

Core claim: Category control becomes possible when school and vendor duties are renamed as soft school language: digital citizenship, acceptable use, innovation, student voice, creator economy, career readiness, stakeholder partnership, and platform-only youth mental health.

Orientation

This packet treats each item as a function-control screen. Each entry names the pathway, owner function, wrong absorbing box, correct legal/operational box, demand-side use, and proof to request. The packet does not claim that every school or vendor has violated every rule. It identifies the rule handles that become relevant when a school authorizes, assigns, normalizes, procures, promotes, or fails to control the system.

Master pathway: School-authorized ed-tech category-control pathway.

Master owner function: school board, superintendent, district technology, procurement, CIPA/E-rate authority, student-data privacy/records authority, curriculum/CTE/media authority, school communications/marketing, and vendor/platform operators.

Wrong master box: acceptable use, student choice, digital citizenship, innovation, free app, stakeholder partnership, social media literacy, student voice, portfolio, creator economy, and platform lawsuit only.

Correct master box: student privacy, internet safety protection, school-consented use limits, vendor-control rules, advertising/endorsement disclosure, addictive engagement design, procurement refusal, and school-side abatement.

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No.	Rule handle	What it catches
1	Outward-lawsuit inversion	Schools plead platform harm outward, then must answer inward authorization.
2	COPPA school-consent limit	School consent cannot authorize non-educational commercial data use.
3	FTC EdTech enforcement / Edmodo	Advertising use, outsourcing COPPA compliance, excess collection/retention.
4	FERPA vendor direct control	Outside vendors must remain under school control for education-record PII.
5	PPRA marketing / student personal info	Marketing, sale, distribution, surveys, and parent rights.
6	California SOPIPA / BPC 22584	K-12 targeted advertising, profiling, sale, disclosure limits.
7	California Ed. Code 49073.1	Mandatory contract protections for pupil records and digital services.
8	CIPA internet safety	Internet safety policy, filtering, online activity monitoring, social networking/chat/cyberbullying.
9	School-event data tolls / PlayOn-GoFan	School participation becomes data surrender through event/ticket/media systems.
10	California SB 976	Addictive feeds, notifications, and engagement design as regulated minor risk.
11	FTC Endorsement Guides	Student promotion, influencer logic, undisclosed commercial/material ties.

The Eleven Rule Handles

1. Outward lawsuit inversion - schools recognized the platform machine outward

Pathway	Outward-foreseeability / inward-authorization pathway.
Owner function	District legal counsel, school board, superintendent, technology/procurement, CIPA authority, curriculum/CTE/media authority.
Wrong box	Platform lawsuit only; youth mental health crisis; public nuisance; student addiction; Section 230; school resource drain.
Correct box	School-side authorization of known platform-risk architecture.
Demand-side use	The districts own outward theory supplies foreseeability. If districts said platform design harms minors and imposes costs on schools, the inward question is what the same districts authorized, required, normalized, credentialed, or failed to abate through school authority.
Proof to request	Complaint; public statement; board minutes approving litigation; settlement terms; internal communications about social media harm; district technology plans; CIPA policy; app lists; contracts; curriculum/CTE/media records.
Sources	S1, S2

2. COPPA school-consent limit - school consent is not commercial permission

Pathway	School-consented child-data collection pathway.
Owner function	Operator/vendor first; district technology/procurement/privacy gate second.
Wrong box	Teacher signup; free classroom app; parent consent assumed; school approved it.
Correct box	School-authorized educational purpose only; no other commercial purpose.
Demand-side use	When school use involves children under 13, the school-consent theory is limited. The FTC says the school can act for the parent only in the educational context, for the use and benefit of the school, and for no other commercial purpose. If the operator uses child information for behavioral advertising, commercial profiles, or unrelated commercial use, the school cannot consent for that purpose.
Proof to request	Age range; vendor COPPA notice; data collected; commercial-use terms; advertising/profile clauses; district approval; teacher signup process; parent notices; deletion/review processes.
Sources	S3

3. FTC EdTech enforcement / Edmodo - advertising use and outsourced compliance

Pathway	Ed-tech commercial conversion enforcement pathway.
Owner function	Ed-tech operator; district approval and monitoring gate where school authorization is relied upon.
Wrong box	School platform; virtual classroom; ed-tech convenience.
Correct box	COPPA/FTC Act enforcement against advertising use, excess collection/retention, and shifting compliance burden to schools.
Demand-side use	Edmodo is the clean enforcement example. The FTC said Edmodo collected children personal information without parental consent, used it for advertising, and unlawfully outsourced COPPA compliance responsibilities to schools. This supports the rule that school use cannot launder vendor commercial behavior.
Proof to request	Vendor enforcement history; privacy policy version; use of children personal information; advertising/marketing integrations; retention terms; whether contract shifts compliance to school/teacher.
Sources	S4

4. FERPA vendor direct control - delegated school function cannot float away

Pathway	Delegated institutional-function pathway.
Owner function	District records/privacy/legal/procurement authority; vendor as outsourced function holder.
Wrong box	Vendor; stakeholder; software partner; school official as paperwork label.
Correct box	Outsourced school function under direct control for use and maintenance of education-record PII.
Demand-side use	FERPA allows schools to outsource institutional services that involve education records only when the outside party performs a function the school would otherwise use employees for, is under direct school control, and uses PII only for the purpose for which disclosure was made. That is an owner-function hook, not merely a privacy box.
Proof to request	DPA/vendor contract; annual FERPA notice; legitimate educational interest language; direct-control terms; redisclosure restrictions; purpose limits; deletion/return terms; vendor subprocessors.
Sources	S5, S6

5. PPRA marketing / student personal information - hidden marketing cannot hide inside curriculum

Pathway	Student marketing-data and parent-rights pathway.
Owner function	LEA privacy, curriculum, parent-rights, records, and communications authority.
Wrong box	Survey; student voice; engagement activity; career interest inventory; portfolio; research project.
Correct box	PPRA parent-rights and marketing/sale/distribution screen.
Demand-side use	PPRA reaches LEA policies and notices involving collection, disclosure, or use of personal information collected from students for marketing, selling, or otherwise providing that information to others for that purpose. It also creates inspection and notice rights for certain surveys, instruments, and instructional materials.
Proof to request	Survey/instrument; personal information fields; marketing/sale/distribution purpose; parent notice; opt-out or consent process; instructional materials; vendor recipient; curriculum context.
Sources	S7

6. California SOPIPA / BPC 22584 - K-12 targeted ads, profiling, sale, disclosure

Pathway	K-12 pupil online anti-commercialization pathway.
Owner function	Operator; district app-approval/procurement/due-diligence gate.
Wrong box	Personalized learning; platform analytics; free service; normal internet business model.
Correct box	K-12 school-purpose operator restrictions on targeted advertising, non-school-purpose profiling, sale, and disclosure.
Demand-side use	California law recognizes that school-purpose online services can become advertising, profiling, sale, or disclosure pathways. That destroys the idea that K-12 online pupil information is neutral market material.
Proof to request	Whether service is K-12 school-purpose; covered information; targeted advertising; persistent identifiers; profiles; sale; disclosures; operator privacy policy; district app approval.
Sources	S8

7. California Education Code 49073.1 - contract-control architecture

Pathway	Mandatory pupil-record contract-control pathway.
Owner function	School board, legal, procurement, technology, records/privacy authority.
Wrong box	Procurement paperwork; vendor paperwork; boilerplate.
Correct box	Mandatory contract terms controlling pupil records, cloud services, digital educational software, use limits, security, breach notice, deletion/return, FERPA compliance, and targeted advertising restrictions.
Demand-side use	In California, the contract is an owner-function document. If the district routes student records or pupil data into a cloud/digital educational service, the contract must carry the protection architecture. Category control happens when the document that proves control gets treated as paperwork.
Proof to request	Executed contract; DPA; board approval; pupil-record clauses; property/control language; allowed purpose; breach notice; security terms; deletion/return; parent/student review/correction; targeted advertising ban.
Sources	S9

8. CIPA - internet safety is not just teach kids to behave

Pathway	School-authorized online safety pathway.
Owner function	District CIPA/E-rate/internet safety policy authority; administrative authority; technology department.
Wrong box	Acceptable use policy; digital citizenship; student behavior; cyberbullying-only response.
Correct box	Required internet safety protection, filtering, monitoring, and online behavior/safety architecture.
Demand-side use	CIPA-covered schools must certify compliance to receive E-rate support and must adopt/enforce internet safety policies with technology protection measures. For schools, the policy must include monitoring minors online activities and education about social networking, chat rooms, cyberbullying awareness, and response. This defeats the idea that online school exposure is only student behavior.
Proof to request	E-rate filings; CIPA policy; acceptable use policy; filtering records; monitoring practices; public meeting records; curriculum for online behavior; records on social networking/chat/cyberbullying response.
Sources	S10, S11

9. School-event data tolls / PlayOn-GoFan - participation becomes data surrender

Pathway	School-event access and student-data toll pathway.
Owner function	Vendor/operator; district athletics/activities/business office/procurement/privacy authority.
Wrong box	Event convenience; ticketing; school spirit; athletics platform; prom/homecoming access.
Correct box	School-event access infrastructure, student privacy, and commercial data-use control.
Demand-side use	This shows the stakeholder problem outside ordinary classroom apps. School events, sports, theater, prom, tickets, streaming, and stats can become compulsory-adjacent data systems. If students or parents must surrender data to participate in school life, the school has an access-control problem, not a convenience issue.
Proof to request	Vendor contract; ticketing terms; privacy policy; opt-out process; data sold/shared; event access alternatives; school board approval; athletics/activity records; parent/student notices.
Sources	S12, S13

10. California SB 976 - addictive feeds and school-hour notifications to minors

Pathway	Addictive demand-engineering pathway.
Owner function	Platform/operator first; school technology/procurement/CIPA/curriculum/CTE if school routes minors into the platform or normalizes its operating logic.
Wrong box	Social media literacy; creator economy; student branding; digital citizenship; career readiness.
Correct box	Regulated minor-directed addictive engagement design.
Demand-side use	SB 976 is not a school statute. It is demand-side proof. California DOJ describes the Act as making it unlawful for online platforms, including social media, to provide addictive feeds and certain features to minors without first obtaining verifiable parental consent. The Act also drives regulations on age assurance and parental consent. This proves California has recognized that feeds, notifications, and engagement features can manipulate minors. If schools normalize the same engines under school language, the school-side owner function becomes visible.
Proof to request	Platform/app used; student assignment or school authorization; age/minor status; addictive feed or notification system; school-day use; platform consent/age-assurance process; district approval; curriculum/CTE records.
Sources	S14, S15

11. FTC Endorsement Guides - student promotion, influencer logic, undisclosed commercial ties

Pathway	Student promotion and hidden material-connection pathway.
Owner function	Advertiser/vendor/school communications office/partner program/CTE or marketing class; endorser and advertiser responsibility where endorsement rules apply.
Wrong box	Student voice; portfolio; marketing class; school pride; creator economy; career readiness; partner showcase.
Correct box	Endorsement advertising and hidden material connection.
Demand-side use	FTC endorsement rules require clear and conspicuous disclosure when a connection between an endorser and seller might materially affect the weight or credibility of the endorsement and the audience would not reasonably expect it. Material connections can include payment, free or discounted products, early access, prizes, or possible paid/promotional appearance. If students are trained or used to promote products, brands, apps, platforms, services, schools, partners, careers, or creator markets without clear disclosure, student voice can become undisclosed demand-side advertising logic.
Proof to request	Student posts/videos/testimonials; school partner/vendor relationship; prizes/free products/discounts/early access/scholarships; promotional use of student content; audience; disclosure language; school communications approvals; partner agreements.
Sources	S16, S17

Records Request Language

Use this when asking a district for records. It keeps the search tied to owner functions instead of asking for abstract category-control documents.

Request: All contracts, data privacy agreements, memoranda of understanding, vendor agreements, board agenda items, procurement records, app approval records, privacy reviews, CIPA compliance records, internet safety policies, technology protection measures, E-rate certifications, acceptable use policies, digital citizenship curriculum, cyberbullying response materials, student media release forms, CTE/media curriculum, school communications records, promotional/student testimonial records, partner/vendor promotion agreements, and documents discussing student use of social networking sites, chat rooms, online communications, media publishing, public-facing student work, creator economy, student branding, online content creation, addictive feeds, notifications, social media litigation, platform addiction, student mental health, or youth online safety from 2010 to present.

Minimum evidence package

Evidence	Why it matters
Outward lawsuit complaint or public statement	Shows the district recognized platform harm and student vulnerability.
Board minutes approving litigation	Shows governance-level knowledge.
CIPA policy and E-rate certifications	Shows the internet-safety owner function.
Approved app/vendor list	Shows inward authorization.
Contracts and DPAs	Shows delegated function, purpose limits, direct control, retention, disclosure, and deletion terms.
CTE/media/student-content documents	Shows visibility, promotion, branding, content-production, or career-readiness pathways.
Student promotion/testimonial/partner materials	Shows possible endorsement logic and hidden material connections.

Locked version

The violations that made category control possible are not mysterious. Schools and vendors converted protected children into users, pupil records into platform data, school consent into commercial permission, safety duties into acceptable-use language, vendor control into stakeholder partnership, public visibility into student voice, student promotion into endorsement logic, and market onboarding into career readiness. The legal screens are COPPA, FTC ed-tech enforcement, FERPA, PPRA, California SOPIPA, California Education Code 49073.1, CIPA, school-event privacy enforcement, SB 976 addictive-feed recognition, FTC Endorsement Guides, vendor contracts, procurement records, and board authorization.

Source Appendix

ID	Source	URL
S1	Seattle Public Schools, Social Media Complaint Filed by Seattle Public Schools	https://www.seattleschools.org/news/social-media-case/
S2	Reuters, Meta settles first U.S. school-cost case tied to youth mental health, May 21, 2026	https://www.reuters.com/world/meta-settles-first-us-case-over-school-costs-tied-youth-mental-health-court-2026-05-21/
S3	FTC, Complying with COPPA: Frequently Asked Questions, school consent and commercial-purpose limits	https://www.ftc.gov/business-guidance/resources/complying-coppa-frequently-asked-questions
S4	FTC, Edmodo enforcement summary	https://www.ftc.gov/legal-library/browse/cases-proceedings/202-3129-edmodo-llc-us-v
S5	U.S. Department of Education, Who is a school official under FERPA?	https://studentprivacy.ed.gov/faq/who-school-official-under-ferpa
S6	U.S. Department of Education, Responsibilities of Third-Party Service Providers under FERPA	https://studentprivacy.ed.gov/sites/default/files/resource_document/file/Vendor%20FAQ.pdf
S7	U.S. Department of Education, PPRA frequently asked questions and LEA notice/policy duties	https://studentprivacy.ed.gov/frequently-asked-questions
S8	California Business and Professions Code section 22584, K-12 pupil online personal information	https://codes.findlaw.com/ca/business-and-professions-code/bpc-sect-22584/
S9	California Education Code section 49073.1, third-party pupil-record contract requirements	https://codes.findlaw.com/ca/education-code/edc-sect-49073-1/
S10	USAC, CIPA requirements for E-rate applicants	https://www.usac.org/e-rate/applicant-process/starting-services/cipa/
S11	FCC, Children's Internet Protection Act guide	https://www.fcc.gov/consumers/guides/childrens-internet-protection-act
S12	California Privacy Protection Agency, PlayOn Sports/GoFan student privacy enforcement, Mar. 3, 2026	https://privacy.ca.gov/2026/03/youth-sports-media-company-to-pay-1-1-million-fine-change-practices-over-privacy-violations/
S13	CalMatters, GoFan/PlayOn school-event data reporting, Mar. 3, 2026	https://calmatters.org/economy/technology/2026/03/ed-tech-california/
S14	California DOJ, Protecting Our Kids from Social Media Addiction Act (SB 976)	https://oag.ca.gov/sb976
S15	California DOJ, proposed SB 976 regulations press release, May 14, 2026	https://oag.ca.gov/news/press-releases/california-department-justice-releases-proposed-protecting-our-kids-social-media
S16	eCFR, 16 CFR Part 255, Guides Concerning Use of Endorsements and Testimonials in Advertising	https://www.ecfr.gov/current/title-16/chapter-I/subchapter-B/part-255
S17	FTC, Endorsement Guides: What People Are Asking	https://www.ftc.gov/business-guidance/resources/ftcs-endorsement-guides-what-people-are-asking